

24STCV07341 24STCV07341

County: los-angeles

Division: Civil Law and Motion

Department: S27

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1.

Background

Facts

Plaintiffs, Jesus and Diana Renteria filed 23LBCV07341 against Defendants, Pinner Construction Co., Inc., et al. on 6/06/23. Plaintiffs' FAC alleges the defendants, and each of them, provided negligent drawings, plans, specifications, safety instructions, and designs for Plaintiff to use in constructing a building. As a result, the building Plaintiff was working on collapsed, causing him to sustain grave injuries. His wife sues for loss of consortium.

On 3/22/24, Rika Corporation filed this related action against Kern Steel Fabrication, Inc., Pinner Construction Co., Inc., and Hartford Fire Insurance Company for damages including enforcement of claim on public works payment bond. Kern and Pinner have each filed cross-complaints, and ultimately First Amended Cross-Complaints, against numerous cross-defendants, including the City.

2.

4/21/26

Ruling on Demurrer

On 4/21/26, the Court ruled on the City's demurrer to Kern Steel's First Amended Cross-Complaint. The Court ruled, in pertinent part, as follows:

The City contends

each and every claim pled against it is barred by Kern's failure to allege compliance with the Government Tort Claims Act.

In opposition to the demurrer, Kern contends Pinner submitted a government tort claim on behalf of itself and all subcontractors. Kern argues, "This part may need to be addressed more in the complaint between CITY and KERN STEEL, but there is compliance. (Dec. of Johnson, ¶ 16.)"

The Johnson

Declaration summarily states that Pinner submitted a tort claim on behalf of itself and all subcontractors.

The issue

presented, therefore, is whether one entity can submit a government tort claim on behalf of another entity. Kern does not address this issue in its opposition papers. Kern indicates it "may need to be addressed more," but that is the purpose of opposition papers. The Court briefly researched the issue, and could not find any authority permitting one legal entity to submit a government tort claim on behalf of another legal entity.

Additionally, the Court notes that the Kern FACC does not even attempt to allege compliance with the Act, and instead the opposition relies on Pinner's FACC to support its contention that it complied with the Act.

The demurrer is

sustained. Leave to amend is granted if and only if Kern can both allege compliance with the Act and, in opposition to a future demurrer in this regard, provide applicable and on-point authority permitting Pinner to submit a claim on its behalf.

3.

Demurrer

to Second Amended Cross-Complaint

a. SACC

Kern Steel filed an SACC, wherein it essentially alleges that Pinner Construction filed a government tort claim on its behalf, and therefore it was excused from filing one on its own behalf.

The City demurs, contending this is improper. Kern Steel, despite being ordered to do so, has not cited any authority supporting its position.

b. Governing Law

Because neither party meaningfully briefed the issue, the Court conducted independent research in this regard.

The Rutter Guide on Personal Injury litigation explains the following:

Where two or more persons suffer separate and distinct injuries from the same act or omission, each person must submit a claim; one cannot rely on a claim presented by another. This is so even where one person's injuries are "derivative" of the other's. [Castaneda v. Department of Corrections & Rehab. (2013) 212 CA4th 1051, 1062-1063, 151 CR3d 648, 656; Nelson v. County of Los Angeles (2003) 113 CA4th 783, 796-798, 6 CR3d 650, 661-662; Nguyen v. Los Angeles County Harbor/UCLA Med. Ctr. (1992) 8 CA4th 729, 10 CR2d 709—parents alleging negligent infliction of emotional distress could not rely on daughter's medical malpractice claim]

(1) [5:11.22] Loss of consortium claimant: A loss of consortium claimant cannot rely on the spouse's (or registered domestic partner's) personal injury claim. Each must file a separate claim (or, alternatively, the claim must indicate it is filed on behalf of both, seeking damages for their respective personal injury and loss of consortium). [Shelton v. Sup.Ct. (State of Calif.) (1976) 56 CA3d 66, 82, 128 CR 454, 464-465]

(2) [5:11.23] Wrongful death and survival claimants: Similarly, an heir's wrongful death claim seeks damages that are separate and distinct from the damages suffered by the victim (and recoverable by the victim's personal representative in a survival action on behalf of the estate). Hence, neither a wrongful death claimant nor a personal representative pursuing a survival cause of action may rely on the other's claim. [Castaneda v. Department of Corrections & Rehab. (2013) 212 CA4th 1051, 1062-1063, 151 CR3d 648, 656; Nelson v. County of Los Angeles (2003) 113 CA4th 783, 796-798, 6 CR3d 650, 661-662; see ¶ 5:122.1]

(3) [5:11.24] Employer and employee claimants: A claim filed by an employer (or its workers' comp carrier) seeking recoupment of workers' comp benefits paid to an injured employee does not excuse claim filing by the employee (or, where the employee was killed, by the wrongful death claimants). [Pacific Tel. & Tel. Co. v. County of Riverside (1980) 106 CA3d 183, 190-192, 165 CR 29, 33-34; Home Ins. Co. v. Southern Calif. Rapid Transit Dist. (1987) 196 CA3d 522, 526, 241 CR 858, 859-860 (dictum; distinguishing employee's right to intervene in employer's lawsuit, ¶ 5:36.3)]

(But an employer (or workers' comp carrier) seeking recoupment of benefits paid to an injured employee claimant need not file a separate claim; see ¶ 5:11.26.)

(4) [5:11.25] Compare—insurer need not file separate subrogation claim:

A liability insurer with a subrogation claim need not file a “separate and redundant” claim where its insured has already timely filed with the entity.

The insurer's claim is not “independent and separate” but, rather, is “equal to and limited by” the insured's right of action. Hence, the insured's filing is sufficient to apprise the entity of the insurer's claim. [Smith v. Parks Manor (1987) 197 CA3d 872, 878-882, 243 CR 256, 258-261]

(a) [5:11.26] Includes employer and workers' comp subrogee claims:

Similarly, a claim filed by an employee includes any claim that the employer or workers' comp carrier may have for benefits paid to the employee based on the same injury. The employer (or carrier) is entitled to rely on the employee's timely-filed claim to meet its filing requirements, and need not file a separate, in effect duplicative, claim for benefits reimbursement. [San Diego Unified Port Dist. v. Sup.Ct. (Marriott Corp.) (1988) 197 CA3d 843, 852, 243 CR 163, 168]

c. Analysis

Kern Steel's argument is that Pinner, the general contractor, was told by the City that the City had a Builder's Risk Policy in place when it actually did not. Pinner and all of its subcontractors suffered losses because the City did not have a policy in place. Pinner then filed a government tort claim on behalf of itself and all subcontractors, and this was sufficient to satisfy the requirement.

Each subcontractor, however, suffered its own unique losses. Even if those losses were in some way related to, or even derivative of, the general contractor's losses, the losses were suffered by the subcontractors directly.

Per the above law, this means each subcontractor was required to file its own government tort claim.

Kern Steel admits it did not do so, and therefore the City's demurrer to the SACC is sustained. Because Kern Steel was previously given leave to amend to address and resolve this issue,

but failed to do so, leave to amend is denied.

d.

Additional

Issues

The Court notes that the City advances other arguments on demurrer, but resolution of those issues is not necessary to a resolution of the demurrer, which is sustained without leave to amend as detailed above. The Court therefore declines to address the remaining arguments.

4.

Motion to Compel

Hi-Q Design moves to compel Kern Steel to respond to RPDs. Hi-Q has similar motions on calendar on 10/06/26 and 10/22/26. The Court wishes to hear all motions together, and therefore continues today's motion and the 10/06/26 motion to 10/22/26 at 8:30 a.m. in Department S27. The Court asks the parties to work together to resolve the discovery issues without the need for the 10/22/26 hearing if at all possible.

5.

Notice

The City is ordered to give notice.